

Mutual AI restraint requires antitrust waiver no one supports

送信者: EG Geo-technology 受信日時: 2026-09-23 06:13

【メール原文】

Of the two new elements in Amodei's pacing plan, only one requires Washington: permission for AI labs to coordinate. Mandatory testing of frontier mod|||||||||||||

United States

Customize Email Preferences

Mutual AI restraint requires antitrust waiver no one supports

22 Sep 2026 17:10 EDT Discover more on the Portal

*

Anthropic CEO Dario Amodei's plan for AI labs to coordinate and pace frontier AI development would need an antitrust waiver from Washington, but no constituency outside the labs supports it.

*

Federal action on AI, if it comes, will be framed around national security rather than safety, which is why a China-focused antitrust carve-out reached the fiscal 2027 National Defense Authorization Act (NDAA) while broader oversight and safety bills went nowhere.

*

Antitrust exposure will keep frontier labs from agreeing to mutual restraint, and none will slow down unilaterally, even if they put additional safety measures in place.

Of the two new elements in Amodei's pacing plan, only one requires Washington: permission for AI labs to coordinate. Mandatory testing of frontier models, evaluators embedded inside labs, shared safety standards among democracies, and tighter controls on advanced chip sales to China already exist in some form. California's SB 53 and New York's RAISE Act require developers to assess catastrophic risk and publish what they find. Major US developers have signed the EU Code of Practice, which requires them to withhold models when risk crosses a self-defined threshold. Amodei does not ask for a pause or a cap on capability. Two elements are new: Amodei's proposal to link releases of more capable models to demonstrated progress on alignment, and his ask for an antitrust waiver to let labs coordinate on safety standards. Neither element would reach advanced open-weight models—with parameters or source code released publicly, and beyond any central lab's control —whose developers largely sit outside the US safety conversation.

Near-consensus has emerged that labs should not have an antitrust shield to collaborate on safety. Five camps against the idea, from those who see no risk to regulate to those who see too much risk to leave safety to the labs, have emerged. US President Donald Trump calls fears about catastrophic AI risk a hoax and objects to anything that slows development (Please see Eurasia Group's note: Trump will be major obstacle to an AI slowdown , 14 September 2026.) Senator Josh Hawley (R-MO)'s pro-regulation camp wants a frontier risk bill without antitrust exemptions. Others distrust companies, believe that the products should be subject to other enforcement, or see no federal role. The right and left are united, with some spanning multiple camps; both free-market and progressive antitrust experts agree that collaboration is collusion under antitrust law.

Most camps agree that slower, better-tested deployment would be beneficial. All agree the major labs should not have permission to coordinate.

Federal action, if it comes, will be framed as national security rather than safety. Senators Jim Banks (R-IN) and Adam Schiff (D-CA) introduced a narrow antitrust carve-out in July to let labs share intelligence and coordinate responses against foreign adversarial risks and other national security threats. It reached the manager's package of the fiscal 2027 National Defense Authorization, but next steps are not clear. Either way, it has made more progress than most AI legislation in the last few years.

Safety measures have not made even that much progress. Lab CEOs asked in June for rules on DNA synthesis equipment to guard against biotech risks and got nothing. The FRONTIER Act, requiring third-party review of frontier models, has no path in Congress. Congress stripped AI safety provisions from previous must-pass NDAA bills.

Even the limited carve-out for national security purposes will probably fail. Sen. Ted Cruz (R-TX) called the labs' request lunacy, and Hawley and White House adviser David Sacks both rejected protections for major firms at the expense of smaller ones. Confirmed theft of model weights from a leading lab could revive it; continuing evidence of distillation will not.

Unilateral restraint is the worst outcome for whichever lab tries it, though Sacks and others recommend it. Mutual restraint would leave everyone better off. Roughly 70% of adults now tell pollsters they are more worried than excited about AI, but their concerns center on jobs and data centers, not safety.

An agreement to restrict model releases for safety requires talking, monitoring, and punishing defection. Antitrust law treats those steps as illegal under a 1978 Supreme Court ruling that firms cannot defend a competitive restraint by arguing that the competition is dangerous. Labs can slow down on their own, but without coordination, none will risk significant constraints on their own lead.

Private litigation and federal enforcement are both live risks. Administration officials have already called coordinated pacing collusion and cartelization. On 18 September, four AI users sued Anthropic, OpenAI, SpaceXAI, and Google, alleging that they had illegally agreed to slow development. While the suit is thin, it shows how quickly antitrust exposure follows a public conversation about coordination. Labs have not announced a pacing agreement, but enforcement comes after the fact, which pushes companies to stay well within any plausible bounds, and given the political pushback, the administration would likely act against collective restraint if the labs attempted it. That leaves the AI sector continuing to push forward, with all the associated investment and scramble for infrastructure that entails.

Heather West

Practice Head, Geo-technology

west@eurasiagroup.net

Nick Reiners

Senior Analyst, Geo-technology

reiners.ne@eurasiagroup.net

Xiaomeng Lu

Director, Geo-technology

+1 202.316.7259

lu@eurasiagroup.net

EG Geo-technology
geo-technology@eurasiagroup.net

© 2026 Eurasia Group. All rights reserved. This material was produced by Eurasia Group for use by the recipient. This is intended as general background research and is not intended to constitute advice on any particular commercial investment or trade matter or issue and should not be relied upon for such purposes. It is not to be made available to any person other than the recipient. No part of this publication may be reproduced, stored in a retrieval system, or transmitted in any form or by any means, electronic or otherwise, without the prior consent of Eurasia Group.

X-HG-DocID cmud4dou21kw807lkl6yx64pl

[Opt Out](#) | [Customize Email Preferences](#)